sections 4 II (h) and 4 II (i) 12 of the Act, §§ 317.19 (c) and 317.11 (6) of the Rules and Regulations for the Registration of Distributors, Rule 12 of section XIII of the Marketing Rules and Regulations, and paragraphs (c), (e), (f) and (h) of the respondent's Distributor's Agreement by accepting and retaining distributors' discounts upon coal which respondent sold to its wholly-owned retailing corporation. The examiner recommended that the registration of respondent be suspended for a period of ninety days and that prior to reinstatement thereof respondent be required to make certain restitution to code members.

On November 3, 1942 respondent, J. S. Turley, died. On May 29, 1943, after the examiner's report was submitted, respondent's counsel filed a suggestion of death and on June 12, 1943 filed herein satisfactory proof of respondent's death.

Section 317.16 of the Distributors Rules provides that:

> Upon the death of a registered distributor or sale or other disposal of his business, his successor in interest or legal repersentative shall, within not exceeding 90 days in the case of death, or within 60 days in the case of sale or other disposal, apply to this Division for registration; otherwise the registration of such distributor shall expire.

The legal representative of the decedent has not filed with the Division an application for registration. Accordingly the registration of respondent expired as of February 3, 1943, ninety days from the date of his death, as provided in § 317.16 of the Distributors' Rules. I find and conclude therefore that the proceeding should be terminated and formally closed.

Now, therefore, it is ordered, That this proceeding is terminated. Appropriate indication of the expiry of the registration of J. S. Turley as a distributor will be made in the records of the Division.

Dated: June 23, 1943.

[SEAL] DAN H. WHEELER,
Director.

[F. R. Doc. 43-10201; Filed, June 25, 1943; 10:15 a. m.]

General Land Office.

[Public Land Order 136]

IDAHO

REVOKING EXECUTIVE ORDER NO. 4339 OF NOVEMBER 9, 1925, AS MODIFIED

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9337 (8 F.R. 5516) of April 24, 1943, it is ordered as follows:

Executive Order No. 4339 of November 9, 1925, as modified by Executive Order No. 5572 of March 7, 1931, withdrawing certain public lands in Tps. 3 and 4 S., R. 14 E., Boise Meridian, Idaho, for classification and pending enactment of legislation for their proper disposition, is hereby revoked.

ABE FORTAS,
Acting Secretary of the Interior.

JUNE 9, 1943.

[F. R. Doc. 43-10206; Filed, June 25, 1943; 11:26 a. m.]

Office of the Secretary.

[Order 1835]

BITUMINOUS COAL MINES

ORDER FOR TAKING POSSESSION

JUNE 23, 1943.

Amendment to Order No. 1809.

A number of bituminous coal mines throughout the nation producing 50 tons or more per day and operated by the companies listed in Appendix B, appended hereto and made a part hereof,[1] were not included in Appendix A to Order No. 1809, dated May 1, 1943 (8 F.R. 5767), taking possession of the nation's coal mines for operation by the United States in furtherance of the prosecution of the war.

By virtue of the authority vested in me by the President of the United States by Executive Order No. 9340, dated May 1, 1943 (8 F.R. 5695), I take possession of each such mine including any and all real and personal property, franchises, rights, facilities, funds, and other assets used in connection with the operation of such mine and the distribution and sale of its products, for operation by the United States in furtherance of the prosecution of the war.

Order No. 1809 is hereby amended accordingly.

HAROLD L. ICKES,
Secretary of the Interior.

[F. R. Doc. 43-10162; Filed, June 24, 1943; 4:37 p. m.]

[Order 1836]

ANTHRACITE COAL MINES

ORDER FOR TAKING POSSESSION

JUNE 23, 1943.

Amendment to Order No. 1810.

A number of anthracite coal mines throughout the nation producing 50 tons or more per day and operated by the companies listed in Appendix B, appended hereto and made a part hereof,[1] were not included in Appendix A to Order No. 1810, dated May 1, 1943, (8 F.R. 5767), taking possession of the nation's coal mines for operation by the United States in furtherance of the prosecution of the war.

By virtue of the authority vested in me by the President of the United States by Executive Order No. 9340, dated May 1, 1943 (8 F.R. 5695), I take possession of each such mine including any and all real and personal property, franchises, rights, facilities, funds, and other assets used in connection with the operation of such mine and the distribution and sale of its products, for operation by the United States in furtherance of the prosecution of the war.

Order No. 1810 is hereby amended accordingly.

HAROLD L. ICKES,
Secretary of the Interior.

[F. R. Doc. 43-10163; Filed, June 24, 1943; 4:37 p. m.]

[1] Filed as part of the original document.

FEDERAL TRADE COMMISSION.

[Docket No. 4961]

BORTZ & COMPANY, ET AL.

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 24th day of June, A. D. 1943.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U.S.C.A., section 41).

It is ordered, That Webster Ballinger, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Wednesday, June 30, 1943, at two o'clock in the afternoon of that day (Central Standard Time), in Room 211, Post Office Building, Anderson, Indiana.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 43-10205; Filed; June 25, 1943; 11:00 a. m.]

OFFICE OF ALIEN PROPERTY CUSTODIAN.

[Amendment to Vesting Order 1352]

ESTATE OF ADOLPH BERGER

In re: Estate of Adolph Berger, deceased; File D–28–1951; E. T. sec. 1900.

Vesting Order Number 1352 issued by the Alien Property Custodian April 27, 1943, and published in the FEDERAL REGISTER May 6, 1943 (8 F.R. 5857) is hereby amended to read as follows:

Under the authority of the Trading with the Enemy Act, as amended, and Executive Order 9095, as amended, and pursuant to law, the Alien Property Custodian after investigation,

Finding that:

(1) The property and interests hereinafter described are property which is in the process of administration by The First National Trust and Savings Bank of San Diego, 5th and Broadway, San Diego, California, Executor, acting under the judicial supervision of the Superior Court of the State of California, in and for the County of San Diego.

(2) Such property and interests are payable or deliverable to, or claimed by, nationals of a designated enemy country, Germany, namely,

Nationals:	*Last known address*
Martha Roth	Germany.
Mrs. Toni Guenther	Germany.
Mrs. Jula Schmitt	Germany.
Mrs. Martha Tuscher	Germany.
Alfred Hartmuth	Germany.
Dr. Richard Hartmuth	Germany.

And determining that:

(3) If such nationals are persons not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country, Germany; and

Having made all determinations and taken all action, after appropriate consultation and certification, required by said Executive Order or Act or otherwise, and deeming it necessary in the national interest,

Now, therefore, the Alien Property Custodian hereby vests the following property and interests:

All of the estate of Adolph Berger, deceased, less the payment of expenses of administration, taxes, debts, and three legacies of $1,000.00 each to Hattie Zimmerman of Chicago, Illinois, Adolph H. Berger of La Porte, Indiana, and Robert O. Berger of Kenilworth, Illinois,

to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

Such property, and any or all of the proceeds thereof, shall be held in an appropriate special account or accounts, pending further determination of the Alien Property Custodian. This shall not be deemed to limit the powers of the Alien Property Custodian to return such property or the proceeds thereof, or to indicate that compensation will not be paid in lieu thereof, if and when it should be determined that such return should be made or such compensation should be paid.

Any person, except a national of a designated enemy country, asserting any claim arising as a result of this order may file with the Alien Property Custodian a notice of his claim, together with a request for a hearing thereon, on Form APC–1, within one year from the date hereof, or within such further time as may be allowed by the Alien Property Custodian.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of said Executive Order.

Dated: June 16, 1943.

[SEAL] LEO T. CROWLEY,
Alien Property Custodian.

[F. R. Doc. 43–10145; Filed, June 24, 1943; 2:03 p. m.]

[Vesting Order 1597]

ANTJELINA HEIENBROCK

Re: Real property situated in Stark County, North Dakota, bank account and shares of stock owned by Antjelina Heienbrock.

Under the authority of the Trading with the Enemy Act, as amended, and Executive Order No. 9095, as amended, and pursuant to law, the undersigned, after investigation:

1. Finding that Antjelina Heienbrock is a resident of Germany, whose last known address is 1800 Horst-Wesel Strasse, Groitzsch/Leipzig, Germany, and is a national of a designated enemy country (Germany);

2. Finding that Antjelina Heienbrock is the owner of the property described in subparagraph 3 hereof;

3. Finding that the property described as follows:

a. All right, title, interest and estate, both legal and equitable, of Antjelina Heienbrock, and of every other national of a designated enemy country, in and to that certain real property situated in Stark County, North Dakota, particularly described in Exhibit "A" attached hereto and made a part hereof, together with all fixtures, improvements and appurtenances thereto, and any and all claims of Antjelina Heienbrock for rents, refunds and benefits or other payments arising from the ownership of such property,

b. All right, title, interest and claim of any name or nature whatsoever of Antjelina Heienbrock, and of every other national of a designated enemy country, in and to any and all obligations, contingent or otherwise, and whether or not matured, owing to Antjelina Heienbrock by Security Bank of Hebron, Hebron, North Dakota, including but not limited to all security rights in and to any and all collateral for any or all such obligations and the right to enforce and collect such obligations and including the checking account in said bank, which checking account is due and owing to and held for Antjelina Heienbrock in the name of H. F. Leutz for Antjelina Heienbrock, and

c. Four shares of common stock, evidenced by certificate No. 193, of the Peoples Telephone Company, Taylor, North Dakota, registered in the name of George Juergens and beneficially owned by Antjelina Heienbrock and held by H. F. Leutz, Taylor, North Dakota,

is property within the United States owned or controlled by a national of a designated enemy country (Germany);

4. Determining that the property described in subparagraphs 3–b and 3–c hereof is necessary for the maintenance and safeguarding of other property (namely, that hereinbefore described in subparagraph 3–a) belonging to the same national of the same designated enemy country and subject to vesting (and in fact vested by this Order) pursuant to Section 2 of said Executive Order;

5. Determining that to the extent that such national is a person not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of the aforesaid designated enemy country (Germany);

6. Having made all determinations and taken all action, after appropriate consultation and certification, required by said Executive Order or Act or otherwise; and

7. Deeming it necessary in the national interest;

hereby vests in the Alien Property Custodian the property described in subparagraph 3 hereof, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

Such property, and any or all of the proceeds thereof, shall be held in an appropriate special account or accounts, pending further determination of the Alien Property Custodian. This shall not be deemed to limit the powers of the Alien Property Custodian to return such property or the proceeds thereof, or to indicate that compensation will not be paid in lieu thereof, if and when it should be determined that such return should be made or such compensation should be paid.

Any person, except a national of a designated enemy country, asserting any claim arising as a result of this order may file with the Alien Property Custodian a notice of his claim, together with a request for a hearing thereon, on Form APC–1, within one year from the date hereof, or within such further time as may be allowed by the Alien Property Custodian. Nothing herein contained shall be deemed to constitute an admission of the existence, validity or right to allowance of any such claim.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of said Executive Order.

Executed at Washington, D. C., on June 3, 1943.

[SEAL] LEO T. CROWLEY,
Alien Property Custodian.

EXHIBIT A

All those tracts or parcels of land situated in the County of Stark, State of North Dakota, particularly described as follows:

Real property

1. The South-West Quarter (SW¼) of Section One (1) in Township One Hundred forty (140) North of Range Ninety-Four (94) West of the Fifth P. M. in Stark County, N. Dak. Containing 160 Acres.

2. The South-East Quarter (SE¼) of Section One (1) in Township One Hundred forty (140) North of Range Ninety-four (94) West of the Fifth P. M. in Stark County, N. Dak. Containing 160 Acres.

3. The North-East Quarter (NE¼) of Section Twelve (12) in Township One Hundred forty (140) North of Range Ninety-Four (94) West of the Fifth P. M. in Stark County, N. Dak. Containing 160 Acres.

[F. R. 43–10146; Filed, June 24, 1943; 1:59 p. m.]